

Sushil Kumar Kesharwani v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 17 January 2024 · 2024:AHC:8053-DB · Writ - C No. 37240 of 2023 · **Final assessment bill quashed; fresh assessment left open.**

HEADNOTE

The electricity department told the Allahabad High Court that the recovery notice dated 25 September 2023 had been kept in abeyance and that the consumer would be heard before a fresh order. On that stand the Court quashed the final assessment bill dated 22 November 2022, left the department free to proceed afresh in accordance with law, and disposed of the writ.

FACTUAL SUMMARY

Sushil Kumar Kesharwani petitioned the Allahabad High Court against a final assessment bill dated 22 November 2022 and a recovery notice dated 25 September 2023. The writ was adjourned, once to allow an amendment. On 4 January 2024 the Court asked the electricity department whether the U.P. Electricity Supply Code, 2005 procedure for assessing unauthorized use had been followed. On 17 January 2024 department counsel produced the Executive Engineer's letter of 11 January 2024 and stated that the recovery notice was in abeyance and that the petitioner would be heard before a fresh order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

unauthorized-use assessment

HOLDING

Where the electricity department states that the recovery notice has been kept in abeyance and that the consumer will be heard before a fresh order, the final assessment bill is quashed and the department may proceed afresh only in accordance with law. ¶ 2-4

FLAG The 4 January 2024 order invokes the U.P. Electricity Supply Code, 2005 procedure for unauthorized-use assessments without citing a clause number; the disposing order cites none.

PRINCIPLE TAGS

final-assessment-quashed-where-licensee-concedes-fresh-hearing On the department's statement that the recovery notice was in abeyance and that a hearing and a fresh order would follow, the Court quashed the final assessment bill and left a fresh proceeding open in accordance with law. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ORIGINAL ASSESSMENT OF UNAUTHORIZED USE FOLLOWED THE PROCEDURE IN THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised on 4 January 2024 and left unanswered when the bill was quashed on the department's concession, with liberty to proceed afresh. ¶ 4